



LEGITIMATION CRISIS OF THE JAPANESE CONSTITUTION

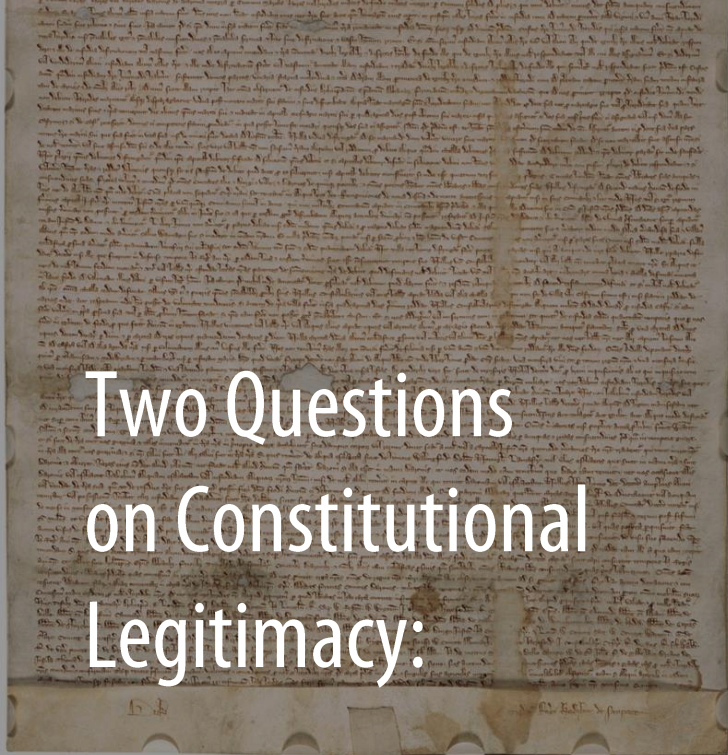


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Two Questions on Constitutional Legitimacy:

Internal implementation of written constitution?

Conformity to the prevailing transnational
standards of constitutionalism?

Historical Background



“Meiji Constitution” 大 日本帝国憲法

Introduced in 1889

“God-Emperor” sovereignty

No judicial review



Meiji Constitution

大日本帝國憲法

第一章 天皇

第一條 大日本帝國ハ萬世一系ノ天皇之ヲ統治ス

第二條 皇位ハ皇室典範ノ定ムル所ニ依リ皇男子孫之ヲ繼承ス

第三條 天皇ハ神聖ニシテ侵スヘカラス

第四條 天皇ハ國ノ元首ニシテ統治權ヲ

總攬シ此ノ憲法ノ條規ニ依リ之ヲ行フ

第五條 天皇ハ帝國議會ノ協贊ヲ以テ立

Chapter 1 vested both legislative and executive power to the emperor

天皇ハ國ノ元首ニシテ統治權ヲ總攬シ

天皇ハ帝國議會ノ協贊ヲ以テ立法權ヲ行フ

Meiji government was marked by the absence of Western-style multi-party system

Substantive political power was in the hands of oligarchs from former feudal clans (藩閥)



大正政変: 1913年 (大正2年) 2月5
日、尾崎行雄の桂内閣弾劾演説

“Taisho Democracy” 1914-1926

Brief period of democratic advancement

Multi-party parliamentary government
began to take shape

Quickly displaced by the rise of military
hard-liners by the 1930s



Post-war Constitution

戦後憲法

“So long as the constitution fixed sovereignty in the Emperor, it was impossible for any party to come forward with the doctrine that sovereignty resided in the people...”

— Joseph Grew, US Under Secretary of State, Dec. 29 1943

“The Japanese Government shall remove all obstacles to the revival and strengthening of democratic tendencies among the Japanese people. Freedom of speech, of religion, and of thought, as well as respect for the fundamental human rights shall be established.”

— Potsdam Declaration, 1945



Post-war Constitution

Gen. Douglas Macarthur and his SCAP staff: headed by two private-practice U.S. lawyers: Milo Rowell and Courtney Whitney

No amendment has been made to it since its adoption in 3 May 1947

14. Outstanding Liberal Provisions.

- a. The sovereignty of the people is acknowledged.
- b. Discriminations by birth, status, sex, race and nationality are prohibited. The peerage is abolished.
- c. Workers benefits required include one 8 hour day, holidays with pay, free hospitalization and old age pensions.
- d. A referendum permitting the people to express their will directly on legislation is provided.
- e. Control of all finances including expenditures of the Imperial family is placed in the Diet. Carry over budgets are prohibited. Audits are required and the President of the Audit Bureau is to be elected.
- f. The right to possess property is limited by the requirement that it be useful to the public welfare.
- g. Land must be used for the best public interest.
- h. A new Constitution must be enacted in 10 years.

15. Summary.

The provisions included in the proposed constitution are democratic and acceptable. Certain essential provisions are omitted. It is recommended that the following principles be required in any constitution before approval:

- a. A clear statement that the Constitution is the Supreme Law of the Land.
- b. Additions to the Rights of the People to accomplish the following:
 - (1) Granting rights similar to those accomplished by a writ of habeas corpus.
 - (2) Guaranteeing speedy and public trials in criminal cases.
 - (3) Prohibiting placing an accused twice in jeopardy for the same offence.
 - (4) Guaranteeing protection against self-incrimination.
 - (5) Guaranteeing the right of an accused to be faced by all witnesses against him.



Three Stages of Constitutionalization



Incarnation

Formal introduction and adoption of a constitution

De Jure “birth” to an autonomous and self-referencing political body

Marked by the enactment of the Japanese Meiji Constitution on November 29, 1890



Ensoulment

Democratization of the
constitutional normative
structure

Towards transnationally
accepted norms of
democratic governance

Marked by the introduction
of Post-war Constitution on
6 March 1946



Ecclesia

Ecclesia (ἐκκλησία) -
Organized faith community

Full-fledged constitutional
society

Interdependent presence of
constitutional doctrines and
practicing believers of
constitutionalism

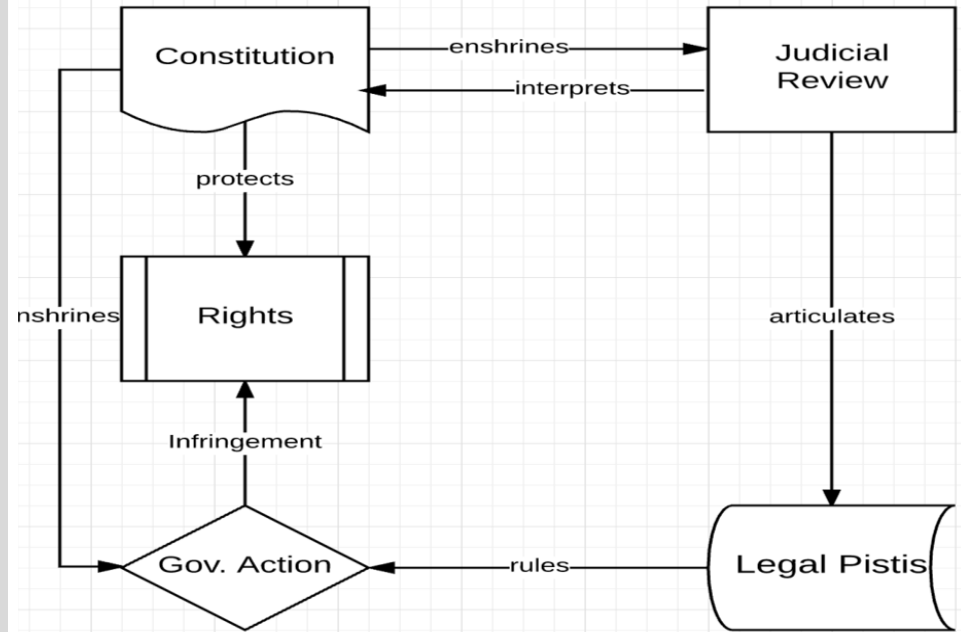




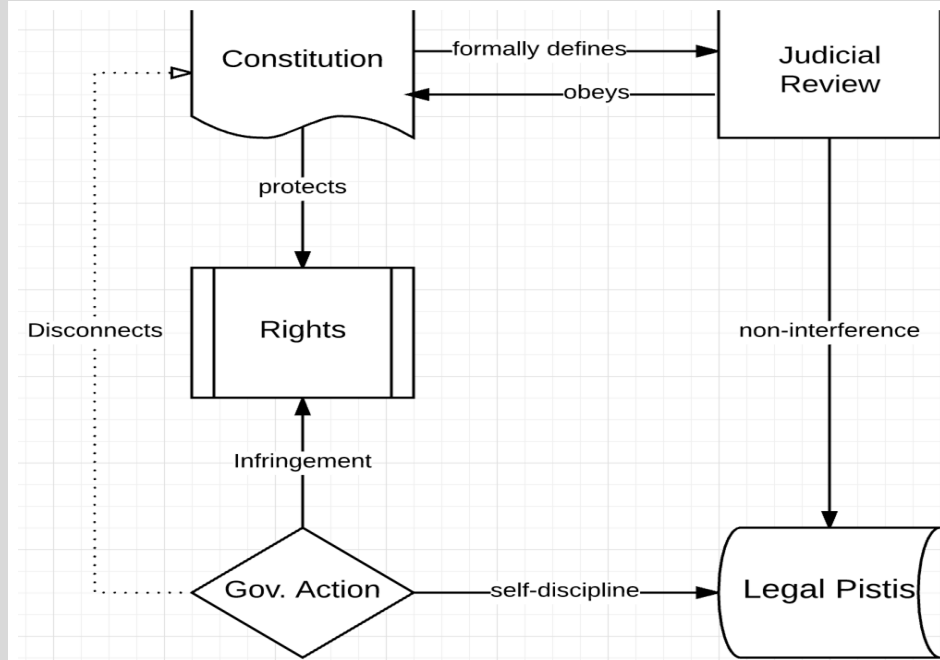
The Problem of Judicial Passivity

最高裁判所

Judicial review according to the written Japanese Constitution:



Japanese judicial passivism in practice:



**Cabinet Legislation
Bureau**

内閣法制局



Conclusions



Post-WWII Japan has been trapped in the *ensoulment* stage of constitutionalization.

While the language in the Japanese Constitution adheres to the transnational standard of constitutional democracy, its persistent lack of implementation implies that post-war Japan has yet to develop itself into a full-fledged constitutional society.

Thank You!

